

Vimal Gupta v. Executive Engineer, Dakshinanchal Electricity Dist. Nigam

Allahabad High Court · Division Bench · 21 September 2017 · WRIT - C No. 44193 of 2017 · **Writ petition disposed of by consent; petitioner directed to deposit 50% of the disputed amount within two weeks, licensee to consider reconnection thereafter**

HEADNOTE

Where a consumer is provisionally assessed for unauthorised extraction of electricity and challenges the assessment, the U.P. Electricity Supply Code, 2005's detailed adjudicatory mechanism (Clause 6.8 and related provisions) must be followed on the merits rather than being bypassed by direct writ challenge; pending such challenge, a consent-based interim arrangement conditioning reconnection on deposit of 50% of the disputed demand is an appropriate equitable via media.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

A consumer challenging a provisional unauthorised-use assessment must pursue the Supply Code's own adjudicatory mechanism on the merits; pending that challenge, reconnection may be conditioned on deposit of 50% of the disputed demand as an equitable interim measure

QUESTION

Should a writ court adjudicate the merits of a provisional unauthorised-use electricity assessment directly, or direct the consumer to the U.P. Electricity Supply Code, 2005's own adjudicatory mechanism, and on what terms may interim reconnection be granted pending resolution?

HOLDING

The Court declined to adjudicate the merits, holding that the Supply Code, 2005 provides a detailed mechanism for adjudication and disposal of unauthorised-use assessment disputes which the petitioner must follow if he wishes to challenge the assessment. With the consent of both parties, the writ petition was disposed of with a direction that the petitioner deposit 50% of the total disputed amount within two weeks, upon which the licensee would consider the reconnection request in accordance with law, with expedition. ¶ [unnumbered order \(full text\)](#)

LIMITING FACTS

The petitioner, a consumer of Dakshinanchal Vidyut Vitran Nigam, was provisionally assessed for unauthorised extraction of electricity, a demand was raised, and his connection was disconnected; he sought both to challenge the assessment and to have the connection restored.

PRINCIPLE TAGS

writ-court-defers-to-supply-code-adjudicatory-mechanism Reinforces that challenges to Supply Code assessments should ordinarily proceed through the Code's own adjudicatory mechanism rather than direct writ adjudication on the merits, with interim reconnection conditioned on partial deposit — a recurring pattern in this corpus's disconnection/reconnection interim-relief cluster. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNAUTHORISED-USE ASSESSMENT

Left to the Supply Code's own adjudicatory mechanism; not decided by the writ court. ¶ [unnumbered order](#)